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Case Number: 26STCV07676 Hearing Date: July 22, 2026 Dept: 515

NATURE OF PROCEEDINGS:

Hearing on Defendants' Demurrer to Plaintiff's Complaint

Defendants' Demurrer to the first, second, and seventh causes of action is sustained with leave to amend. The Demurrer to the fourth cause of action is sustained without leave to amend.

BACKGROUND

Plaintiff Joseph Omar Oviedo (Plaintiff) filed this action against SF Markets, LLC, doing business as Sprouts Farmers Market (Sprouts), Adam Schmidt (Schmidt), and Jeremiah Huggins (Huggins) (collectively, "Defendants"), arising from Plaintiff's employment with Sprouts and Sprouts's response to a workplace assault.

Plaintiff alleges that Sprouts hired him as an in-store shopper. In April 2025, while Plaintiff was performing his assigned job duties at Sprouts's store, an Instacart vendor became aggressive, threatened to fight Plaintiff, and struck him in the torso. Plaintiff reported the assault to management, requested that it be reported to law enforcement, asked that surveillance footage be reviewed, and complained to Schmidt and Huggins about unsafe working conditions and the absence of managerial supervision. Sprouts suspended Plaintiff pending an investigation, reviewed the footage, and then terminated his employment.

The Complaint alleges eight causes of action: (1) Assault; (2) Battery; (3) Retaliation in Violation of Labor Code Section 232.5; (4) Retaliation in Violation of Labor Code Section 1102.5; (5) Retaliation in

Violation of Labor Code Section 6310; (6) Wrongful Termination in Violation of Public Policy; (7) Violation of Civil Code Section 52.1; and (8) Violation of Labor Code Section 2698 et seq.

Sprouts filed a Demurrer to the first, second, and seventh causes of action. Schmidt and Huggins demur to the fourth cause of action. Plaintiff filed an Opposition, and Defendants filed a Reply.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or the facts alleged.” [Citation.]” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

ANALYSIS

I. Assault and Battery

Sprouts demurs to the first and second causes of action for assault and battery on the ground that the workers’ compensation exclusivity rule bars them and that Plaintiff has not alleged facts establishing Sprouts’s liability for the conduct of a third party.

California’s workers’ compensation system provides the exclusive remedy for an employee’s injury arising out of and in the course of employment. (Lab. Code, §§ 3600, 3602, subd. (a).) Under the compensation bargain, the employer assumes liability for industrial injury without regard to fault in exchange for limitations on that liability, and the exclusivity rule reaches all injuries collateral to or derivative of a compensable injury. (Charles J. Vacanti, M.D., Inc. v. State Comp. Ins. Fund (2001) 24 Cal.4th 800, 811, 813 (Vacanti).)

A narrow exception permits a civil action where the employee's injury is proximately caused by a willful physical assault by the employer. (Lab. Code, § 3602, subd. (b)(1).) An employer may be liable under this exception as a joint participant when it ratifies the assaultive conduct of its own employee, but the exception cannot be extended through respondeat superior to reach a co-employee's assault. (*Fretland v. County of Humboldt* (1999) 69 Cal.App.4th 1478, 1489-1490 (*Fretland*).) "But since ratification contemplates an act by one person in behalf of another, there must exist at the time the unauthorized act was done a relationship, either actual or assumed, of principal and agent, between the person alleged to have ratified and the person by whom the unauthorized act was done. For example, one cannot ratify a contract entered into by a corporation which did not in fact act, or assume to act, for him. [¶] 'Furthermore, the prevailing view is that there can be no ratification if the person who performed the unauthorized act did not at the time profess to be an agent.'" (*Anderson v. Fay Improv. Co.* (1955) 134 Cal.App.2d 738, 748.)

Here, the assailant was neither Sprouts nor a co-employee, but a third-party Instacart vendor. (Compl. ¶¶ 21, 46.) Plaintiff alleges that the assault occurred while he was performing his assigned job duties (Compl. ¶ 21) and that he was acting within the course and scope of his employment when he was subjected to the conduct (Compl. ¶ 93). On the face of the Complaint, the injury arose out of and in the course of employment, and the exclusivity rule applies. (*Vacanti*, supra, 24 Cal.4th at p. 813.) The section 3602, subdivision (b)(1), exception does not remove the claims from that rule. Plaintiff does not allege that Sprouts committed the assault; he alleges the opposite. (Compl. ¶ 46.) And the ratification recognized in *Fretland* reaches an employer's ratification of a co-employee's assault, not the conduct of an unrelated third party. (*Fretland*, supra, 69 Cal.App.4th at pp. 1489-1490.) Because Plaintiff fails to allege an agency relationship between the Instacart vendor and Sprouts, Sprouts could not have ratified the vendor's conduct.

Plaintiff's argument that the assault arose out of the risks created by Sprouts's business operations does not aid him. An injury that arises out of the conditions and risks of the employment is the paradigmatic subject of the compensation bargain, so characterizing the assault as an outgrowth of Sprouts's enterprise places it more securely within workers' compensation exclusivity, not outside it. (*Vacanti*, supra, 24 Cal.4th at pp. 811, 813.) For the same reason, the extent of Sprouts's control over the

vendor is immaterial at the pleading stage: exclusivity turns on the employment connection of Plaintiff's injury, which the Complaint alleges.

Accordingly, the Demurrer to the first and second causes of action is sustained with leave to amend.

II. Whistleblower

Retaliation Under Labor Code Section 1102.5

Schmidt and Huggins demur to the fourth cause of action on the ground that Labor Code section 1102.5 does not impose liability on individual supervisors who are not the plaintiff's employer.

Section 1102.5, subdivision (b), provides that "[a]n employer, or any person acting on behalf of the employer, shall not retaliate against an employee for disclosing information" to a government or law enforcement agency or to a person with authority over the employee, if the employee has reasonable cause to believe the information discloses a violation of law. (Lab. Code, § 1102.5, subd. (b).) Plaintiff contends that the phrase "any person acting on behalf of the employer" subjects Schmidt and Huggins to personal liability. No published California decision holds that section 1102.5 imposes liability on a nonemployer individual, so the question is one of statutory interpretation. The Court concludes that the statute does not impose such liability, for three reasons.

First, the California Supreme Court has rejected the argument that comparable language imposes individual liability. In *Jones v. Lodge at Torrey Pines Partnership* (2008) 42 Cal.4th 1158 (*Jones*), the Court held that an employer, but not a nonemployer individual, may be held liable for retaliation under the Fair Employment and Housing Act, even though the operative provision prohibited retaliation by any "employer ... or person." (*Id.* at pp. 1160, 1173.) The Court explained that the word "person" does not compel individual liability and that the Legislature uses clear language when it means to impose it. (*Id.* at p. 1162.) That reasoning followed *Reno v. Baird* (1998) 18 Cal.4th 640, which reached the same conclusion for FEHA discrimination even though the statute defined "employer" to include a person acting as an agent of an employer. Section 1102.5 contains no language declaring a person acting on the employer's behalf "personally liable," and its prohibition is naturally read as fixing the employer's responsibility for retaliation carried out through its agents.

Second, the remedial provisions of the same chapter run against the employer. Section 1105 provides that “[n]othing in this chapter shall prevent the injured employee from recovering damages from his employer for injury suffered through a violation of this chapter.” (Lab. Code, § 1105.) Section 1102.5, subdivision (f), in turn imposes civil-penalty liability on “an employer.” (Lab. Code, § 1102.5, subd. (f).) The scheme directs civil recovery for a section 1102.5 violation to the employer.

Third, where the Legislature has meant to impose individual liability elsewhere in the Labor Code, it has said so expressly. Sections 558.1 and 1197.1 provide that a person acting on behalf of an employer may be held liable as the employer for the wage violations those sections address. (Lab. Code, §§ 558.1, subd. (a), 1197.1, subd. (a).) Section 1102.5 contains no comparable provision. The contrast confirms that “any person acting on behalf of the employer” defines the conduct the statute prohibits rather than creating a private right of action against individual supervisors.

Plaintiff’s contrary arguments are not persuasive. Plaintiff argues that excluding individual liability renders the 2013 addition of “any person acting on behalf of the employer” surplusage. Not so. The phrase confirms that the prohibition reaches retaliation the employer carries out through those acting on its behalf. Jones rejected the same surplusage argument as to analogous language. (Jones, *supra*, 42 Cal.4th at p. 1162.) Plaintiff also points to Labor Code section 1103, which makes an individual who violates the chapter guilty of a misdemeanor. That the Legislature imposed criminal liability on individuals in section 1103 while limiting civil recovery to the employer in section 1105 undercuts individual civil liability rather than supporting it.

Because section 1102.5 does not impose liability on Schmidt and Huggins as individuals, and that defect cannot be cured by amendment, the Demurrer to the fourth cause of action is sustained without leave to amend.

III. Violation of Civil Code Section 52.1

Sprouts demurs to the seventh cause of action on the ground that Plaintiff has not alleged that Sprouts interfered with a protected right by threats, intimidation, or coercion.

The Bane Act creates a cause of action against a person who interferes, or attempts to interfere, by threats, intimidation, or coercion, with an individual's exercise or enjoyment of rights secured by the Constitution or laws of the United States or of California. (Civ. Code, § 52.1, subd. (b).) The coercive conduct must be a volitional act intended to interfere with the exercise of a protected right; the statute does not reach injuries brought about by negligence or inaction. (*Shoyoye v. County of Los Angeles* (2012) 203 Cal.App.4th 947, 959 (*Shoyoye*).) An adverse employment action, such as suspending or terminating an employee, is not itself the threat, intimidation, or coercion the Act requires. (*Cabesuela v. Browning-Ferris Industries* (1998) 68 Cal.App.4th 101, 111 (*Cabesuela*).)

Here, the conduct the Complaint attributes to Sprouts is that it suspended Plaintiff, terminated his employment, declined to facilitate a police report, and downplayed the seriousness of the assault. (Compl. ¶¶ 24, 30-31, 93-94.) The suspension and termination are adverse employment actions that do not constitute the threats, intimidation, or coercion the Bane Act requires. (*Cabesuela*, supra, 68 Cal.App.4th at p. 111.) Sprouts's failure to facilitate a police report is alleged inaction, which likewise falls outside the statute. (*Shoyoye*, supra, 203 Cal.App.4th at p. 959.)

The third-party Instacart vendor committed the assault, and Plaintiff does not allege that Sprouts committed any act or threat of violence. (Compl. ¶ 46.) Plaintiff's allegation that Sprouts's conduct was "intended to ... threaten, intimidate, [and] coerce" him (Compl. ¶ 30) is a conclusion the Court need not accept on demurrer. The Complaint alleges only an assault by a third party followed by adverse employment actions, which does not state a claim under the Bane Act. Accordingly, the Demurrer to the seventh cause of action is sustained with leave to amend.

CONCLUSION

Defendants' Demurrer to the first, second, and seventh causes of action is sustained with 20 days leave to amend. The Demurrer to the fourth cause of action is sustained without leave to amend.